

SUPREME COURT OF THE STATE OF NEW YORK

COUNTY OF BRONX

-----X

SANDRA SMALLS,

Index No.:

Plaintiff,

-against-

SUMMONS

CITY OF NEW YORK, POLICE OFFICER NELSON NIN

POLICE OFFICER JOHN DOE, individually and

Basis of venue:

in their capacity as members of the

Cause of action

New York City Police Department

arose in Bronx

Defendant.

-----X

To the above named Defendants

YOU ARE HEREBY SUMMONED and required to serve upon Plaintiff's attorneys, a Verified Answer in this action within twenty days after the date of the service of the summons, exclusive of the day of service, or within thirty days after service is complete if this summons is not personally delivered to you within the State of New York. In case of your failure to answer, judgment will be taken against you by default for the relief demanded within the complaint. The basis of venue designated above is that the causes of action, in the complaint, arose in the County of the Bronx.

Dated: May 18, 2017

New York, NY


DENNIS FELICIANO
PRADO & TUY

305 Broadway, 7th Floor

New York, NY 10007

(212) 668-8888

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X

SANDRA SMALLS,

Index No.:

Plaintiff,

-against-

COMPLAINT

CITY OF NEW YORK, POLICE OFFICER NELSON NIN

POLICE OFFICER JOHN DOE, individually and

in their capacity as members of the

New York City Police Department

Defendant.

-----X

PRELIMINARY STATEMENT

1. This is a civil action in which Plaintiff Sandra Smalls, (Ms. Smalls) seeks relief for the violation of her rights secured by 42 USC 1983, the Fourth and Fourteenth Amendments to the United States Constitution.
2. The claims arose from an incident in or about August 2014, in which officers of the New York City Police Department (NYPD) acting under color of state law, intentionally and willfully subjected plaintiff to inter alia, false arrest, malicious abuse of process, and denial of right to fair trial.
3. Plaintiff seeks monetary damages (special, compensatory and punitive) against defendants and an award of costs and attorneys' fees, and such other and further relief as this Court deems just and proper.

PARTIES

4. Sandra Smalls is a United States Citizen and at all times here relevant resided at Bronx County.
5. The City of New York is a municipal corporation organized under the laws of the State of New York.
6. Police Officer Nelson Nin (Shield 15130) and Police Officer John Doe at all times here relevant were members of the NYPD and are sued in their individual and professional capacities
7. At all time mentioned, Defendants were acting under the color of state law, and under the color of the statutes, ordinances, regulations, policies and customs and usages of the City and State of New York.

FACTUAL ALLEGATIONS

8. Sandra Smalls is the birth mother of Lanette Howard, also known as Gwendolyn Smalls.
9. Earlier that year, in May 2014, as parent and guardian for her daughter, Ms. Smalls initiated an action against the City of New York, for publicized motor vehicle accident involving her daughter Lanette Howard and the New York City Police Department motor vehicle.
10. Lanette Howard, also known as Gwendolyn Smalls was arrested on August 2014. Ms. Smalls appeared at the precinct and identified herself and her relationship with her daughter. Sandra Smalls was arrested by Police Officer Nelson Nin. Ms. Smalls was also arrested at the direction of Police Officer John Doe, a Captain, and charged with the following: Attempted Hindering of Prosecution 2; Attempted Hindering of Prosecution 3.
11. Ms. Smalls was taken to Court for arraignment and was released.

12. Ms. Smalls had to attend Court on multiple occasions until all charges were dismissed on or about August of 2015.
13. Ms. Smalls was extremely upset by these events.
14. Ms. Smalls continues to feel frustrated and upset by the events from August of 2014.
15. Ms. Smalls feels frustration, anxiety, embarrassment and humiliation as a result of the events of August 2014.

FIRST CAUSE OF ACTION

(42 USC 1983 – False Arrest)

16. Plaintiff repeats and re-alleges each of the preceding allegations of this complaint as if fully set forth herein.
17. Defendants have deprived the Plaintiff of her Civil, Constitutional and Statutory rights, under Color of Law and are liable under 42 USC 1983
18. Defendants have deprived Plaintiff of her right to be free of unreasonable searches and seizures, pursuant to the Fourth and Fourteenth Amendments to the United States Constitution, in that Plaintiff was falsely arrested by Defendants.
19. Defendants confined Plaintiff.
20. Plaintiff was aware of, and did not consent to, her confinement.
21. The confinement was not privileged.
22. Plaintiff has been damaged as a result of Defendants' actions in an amount believed to equal and or exceed the jurisdictional limit of this Court.

SECOND CAUSE OF ACTION**(42USC 1983 – Malicious Abuse of Process)**

23. Plaintiff repeats and re-alleges each of the preceding allegations of this complaint as if fully set forth herein.
24. Defendants have deprived the Plaintiff of her Civil, Constitutional and Statutory rights, under Color of Law and are liable under 42 USC 1983
25. Defendants have deprived Plaintiff of her right to be free of unreasonable searches and seizures, pursuant to the Fourth and Fourteenth Amendments to the United States Constitution, in that Plaintiff suffered from Defendants' malicious abuse of process.
26. Defendants employed regularly issued legal process to compel performance or forbearance of an act, with intent to do harm to Plaintiff and without excuse or justification, and in order to obtain a collateral objective that was outside the legitimate ends of the process.
27. Plaintiff has been damaged as a result of Defendants' actions in an amount believed to equal and or exceed the jurisdictional limit of this Court.

THIRD CAUSE OF ACTION**(42 USC 1983 – Conspiracy)**

28. Plaintiff repeats and re-alleges each of the preceding allegations of this complaint as if fully set forth herein.
29. Defendants have deprived the Plaintiff of her Civil, Constitutional and Statutory rights, under Color of Law and are liable under 42 USC 1983.

30. Defendants entered into an agreement or understanding, express or implied, to violate Plaintiff's constitutional rights and to accomplish an unlawful purpose in that defendants conspired to falsely arrest Plaintiff, cause Plaintiff to suffer malicious abuse of process and deny right to fair trial.
31. Plaintiff has been damaged as a result of Defendants' actions in an amount believed to equal and or exceed the jurisdictional limit of this Court.

FOURTH CAUSE OF ACTION

(42 USC 1983 – Denial of Right to a Fair Trial)

32. Plaintiff repeats and re-alleges each of the preceding allegations of this complaint as if fully set forth herein.
33. Defendants have deprived the Plaintiff of her Civil, Constitutional and Statutory rights, under Color of Law and are liable under 42 USC 1983.
34. Defendants have deprived Plaintiff of her right to be free of unreasonable searches and seizures, pursuant to the Fourth and Fourteenth Amendments to the United States Constitution, in that Plaintiff was denied a right to a fair trial.
35. Defendants created false information that was likely to influence a jury's decision and then forwarded that information to prosecutors resulting in Plaintiff suffering a deprivation of her liberty and a violation of her rights .
36. Plaintiff has been damaged as a result of Defendants' actions in an amount believed to equal and or exceed the jurisdictional limit of this Court.

FIFTH CAUSE OF ACTION – Respondeat Superior

37. Plaintiff repeats and re-alleges each of the preceding allegations of this complaint as if fully set forth herein.
38. PO John Doe and PO Nelson Nin were acting in their capacity as officers of the NYPD when their actions damaged Plaintiff.
39. Plaintiff has been damaged as a result of Defendants' actions in an amount believed to equal and or exceed the jurisdictional limit of this Court.

SIXTH CAUSE OF ACTION

(42 USC 1983) Violations of the Fourth,

Fifth and Fourteenth Amendments

40. Plaintiff repeats and re-alleges each of the preceding allegations of this complaint as if fully set forth herein.
41. In committing the acts and omissions complained of herein, the individual defendants acted under the color of state law to deprive the Plaintiff of certain constitutionally protected rights under the Fourth, Fifth and Fourteenth Amendments to the United States Constitution including but not limited to: the right to be free from unreasonable seizure of her person; the right to be free from arrest without probable cause; the right to be free from false imprisonment, that being wrongful detention without good faith, reasonable suspicion or legal justification and of which detention Plaintiff was aware and to which she did not consent; the right to be free from deprivation of liberty without due process of law; the right to be free from malicious prosecution, and the right to a fair trial.
42. In committing the acts and omissions complained of herein, the individual defendants breached their affirmative duty to intervene to

protect the constitutional rights of citizens from infringement by other law enforcement officers in their presence.

43. As a direct and proximate result of Defendants' deprivation of Plaintiff's constitutional rights, Plaintiff suffered the injuries and damages set forth above.
44. The unlawful conduct of the individual Defendants was willful, malicious, oppressive and/or reckless and was of such a nature that punitive damages should be imposed.

WHEREFORE, Plaintiff demands judgment and prays for the following relief, jointly and severally, against the Defendants: full and fair compensatory damages in an amount to be determined by a jury; punitive damages against the individual defendants in an amount to be determined by a jury; reasonable attorney's fees; the costs and disbursements of this action; interest, and other such relief the Court deems just and proper.

Dated: May 18, 2017

New York, NY



DENNIS FELICIANO

PRADO & TUY

305 Broadway, 7th Floor

New York, NY 10007

(212) 668-8888

ATTORNEY'S VERIFICATION

Dennis Feliciano, an attorney duly admitted to practice law in the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

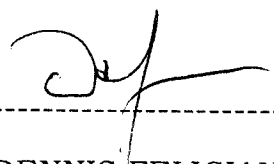
I am an attorney with Prado and Tuy, attorneys herein, and I have read the annexed Summons and Complaint.

And know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters, I believe them to be true. My belief as to those matters therein not stated upon knowledge, is based upon facts records and other pertinent information contained in my files.

The reason this verification is made by me and not Plaintiff is that Plaintiff does not reside presently in New York County where I maintain my offices.

Dated: New York, NY

May 18, 2017



DENNIS FELICIANO

Prado & Tuy

305 Broadway, 7th Floor,

New York, NY 10007

Index No:
SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

SANDRA SMALLS,

Plaintiff,

-against-

CITY OF NEW YORK, POLICE OFFICE NELSON NIN, POLICE OFFICER JOHN DOE,
individually and in their capacity as members of the New York City Police Department,

Defendants.

SUMMONS and VERIFIED COMPLAINT

PRADO & TUY, LLP
Attorneys for Plaintiff
305 Broadway, 7th Floor
NEW YORK, NEW YORK 10007
212-668-8888

Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated:

Signature _____
Print Name DENNIS J. FELICIANO

To:
Attorney(s) for:
Sir(s):

PLEASE TAKE NOTICE that a _____ of which the within is a (true)
(certified) copy

[] NOTICE OF ENTRY was duly entered in the within named court on _____ 2017

To:
Attorney(s) for: [] NOTICE OF SETTLEMENT will be presented for settlement to the Hon.
one of the judges of the within named court at the Courthouse at on _____, 2017 at 9:30
o'clock A.M.

Dated:

Yours, etc.,

PRADO & TUY, LLP
Attorneys for: Plaintiff
305 Broadway, 7th Floor
New York, New York 10007
(212) 668-8888